In the Matter Of:

Rosario V. Abdelhalim

CGC-21-594102

OFFICER DAVID FERNANDEZ

March 10, 2023

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SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

UNLIMITED CIVIL JURISDICTION

Franciscus Dylan Rosario,

Plaintiff,

vs. Case No. CGC-21-594102

Subhi Abdelhalim, individually,
and dba Sonoma Liquor,

Defendants.
_____/

VIDEOCONFERENCE DEPOSITION OF
OFFICER DAVID FERNANDEZ

MARCH 10, 2023
10:00 a.m.

Marcie Rivera, CSR No. 11846

APPEARANCES OF COUNSEL

For Plaintiff:

DOLAN LAW FIRM, PC
BY: JEREMY M. JESSUP, ESQ.
1438 Market Street
San Francisco, CA 94102
415.421.2830
jeremy.jessup@dolanlawfirm.com

For Defendant SUBHI ABDELHALIM:

CARBONE, SMITH & KOYAMA
BY: MICHAEL R. CHAMBERS, ESQ.
555 12th Street, Suite 1250
Oakland, CA 94607-4095
510.267.7276
michael.chambers@csaa.com

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FRIDAY, MARCH 10, 2023; 10:00 A.M.,

OFFICER DAVID FERNANDEZ

Having been first duly sworn, was examined and testified as follows:

EXAMINATION

BY MR. CHAMBERS:

Q Would you state your full name for the record, please?

A David Fernandez.

Q Okay. My name is Mike Chambers and I'll be taking your deposition this morning.

Have you had your deposition taken before?

A No.

Q Oh, okay. I was assuming you probably had, so let me go through some ground rules with you.

First off, you've been placed under oath and you'll be testifying under the penalty of perjury.

Do you understand what that means?

A Yes.

Q Have you testified in court before?

A Yeah.

Q Okay. I'll still go through a few admonitions

for depositions because especially doing this in the Zoom format, it's a little different. Your testimony this morning is going to be taken down by the court reporter and put into a written transcript. You'll be given an opportunity to review that transcript and to make any changes or corrections that you feel are necessary. I just want you to know that any changes or corrections that you make to your transcript can be commented on in an arbitration or trial.

Do you understand that?

A Yes.

Q Okay. When you're answering questions today I don't want you to guess or to speculate. If you don't know the answer to a question, or if you don't remember, please indicate that. I won't be having you estimate anything this morning. I'm just going to be going over with you your investigation of the accident scene, but do you understand that?

A Yes.

Q The other thing is, you've done very well so far, when you give answers you need to speak your answers, particularly if it's a yes or no response, you need to say that word, "yes" or "no," rather than nodding or shaking your head.

The other thing to remember is that in this

Zoom format, if we both speak at the same time the court reporter can't hear either one of us. So when I'm asking a question today, just give it a couple heartbeats after I finish speaking before you come in with your response, and I'll do the same when you're giving answers.

And the other thing to remember is, I might ask something really obvious but don't anticipate the question and jump in with an answer. Just wait for me to finish speaking and then give your answer.

Do you understand that?

A Yes.

Q The other thing that happens sometimes in this Zoom format is I'll be speaking and for whatever reason my audio goes out. If that happens, usually the court reporter will alert me, but if it's just on your end let me know right away and I'll repeat the question.

Do you understand that?

A Yes.

Q And if I ask you something that you don't understand, just tell me and I'll keep rephrasing the question until you do understand.

Do you understand that?

A Yes.

Q Okay. So we're here about a traffic accident on February 4, 2021. Do you have a copy of the report in

front of you?
A I do.
Q Okay. Good. All right.
MR. CHAMBERS: And, Jeremy, do you have a copy or do you want me to share my screen? I have one cued up on my laptop.
MR. JESSUP: I have a copy here.
MR. CHAMBERS: I freeze everyone's laptops if I share the screen and so I hate doing that if I don't have to.
BY MR. CHAMBERS:
Q So it's just -- Officer, let's just go through the report.
First off, how did you get notified of the accident?
A We were sent to the call by dispatch.
Q And you were working with another officer at the time?
A Yes.
Q And who was the other officer that you were working with?
A Officer (inaudible).
Q Could you say that again, please? Did we lose --
A Officer Orengo, O-r-e-n-g-o.

Q Yeah, you're kind of, I don't know if it's the connection or not, you kind of broke up there. Can you give -- you're kind of freezing. If you want, if Jeremy doesn't oppose, you can -- do you want to try muting your video to see if that helps your feed a little?

MR. JESSUP: I'm fine with that.

THE WITNESS: Yeah. Is that better?

BY MR. CHAMBERS:

Q Yeah. Sorry, who were you partnered with that day?

A Officer Orengo.

Q And how do you spell that?

A O-r-e-n-g-o.

Q And just for the court reporter's benefit I'll attach as -- I'll send her a copy of the police report, and we'll attach it as Defendant's Exhibit A so she has that information as well. Okay.

(Exhibit A marked for identification)

BY MR. CHAMBERS:

Q And so you were in a patrol car; is that correct?

A Yes.

Q Okay. First off, other than looking at the report, do you have an independent recollection of this accident?

A I remember very little about what happened. I reviewed body-worn camera footage that kind of helped me remember, but mostly just going off the police report.

Q Okay. And I noted that photographs were taken at the scene. Was the bodycam footage retained as well?

A Yes.

Q And then as far as the report indicates, did you canvass the area for any videos?

A Yes.

Q And were you able to find any video of the accident?

A No.

Q And other than the two parties identified in the report, were you able to identify any witnesses to the accident?

A No.

Q Okay. So there's a diagram that's part of the police report. As far as that diagram, how was that put together? Was it based on measurements, statements? How did you put that together?

A Yeah, based on measurements, based on the statements provided by the parties on scene.

Q Okay. And looking at the report, my understanding is that both vehicles were moved prior to your arrival?

A Yes.
Q The report identifies statements from both parties. First off, do you recall who took those statements?
A I don't recall.
Q As far as your process with taking statements, how do you do that? Do you write down what a person is saying to you? How do you -- how do you take down a statement?
A Yeah. I usually interview them and I'll write down some notes about what they've said. Or if another officer takes the statement, they'll do the same and they'll give me a synopsis and they'll give me their notes.
Q And you were the author of this report; is that correct?
A That's correct.
Q So if the other officer, Officer Orengo, had taken a statement, would you have identified that in the report?
A Not necessarily.
Q The statement attributed to Party 1, Mr. Rosario, is that a verbatim statement or is that just a summary of what he indicated?
A That's a summary.

Q Okay. And what about for Operator Number 2, Mr. Abdelhalim, was that a verbatim or was that a summary?

A A summary as well.

Q And then according to the police report, Mr. Rosario indicated he was traveling northbound on 5th Street against the flow of traffic?

A That's correct.

Q And he was operating in the bicycle lane, a scooter?

A That's correct.

Q Is it proper to operate a scooter in the bicycle lane?

A No.

Q Would the scooter need to be in the actual lane of traffic --

A Yes.

Q -- and going with the flow of traffic?

A Yes.

Q And then Mr. Abdelhalim indicated he was operating his vehicle southbound on 5th Street and making a turn onto westbound Tehama?

A That's correct.

Q And then as far as both vehicles, did you -- did you have a chance to observe both vehicles at the

scene?

A I remember seeing the scooter. I don't remember the other vehicle.

Q Okay. And I note in the report it was noted there was no damage to the scooter; is that correct?

A That's correct.

Q And then the report indicates that there was no damage to the other vehicle, but do you have a memory of that at all or did you note any damage?

A I didn't note any damage.

Q And there was -- the report indicates that Mr. Rosario was not cited as a result of the accident. And what was the reason for that?

A So he caused injury to himself. Our policy states if someone causes an injury to someone else and they're the person at fault, then we cite them. So it's not required that they are cited if they only cause injury to themselves and they're at fault.

Q Was it determined that he had violated a California Vehicle Code?

A Yes.

Q And was that for riding in the -- against the flow of traffic in the bicycle lane?

A Yes.

Q Was Mr. Abdelhalim determined to have violated

any provision of the California Vehicle Code?
A No.
Q And as far as the police report, if you know, did you ever receive any inquiries from Mr. Rosario to make any changes or corrections to the police report?
A Not that I remember.
Q If such an inquiry would have been made, would that have been noted?
A Are you -- do you mean like after the report was written or before?
Q After the report was written.
A Yeah. Yeah, that could have been noted in a supplemental report.
Q Okay. Is that how it usually works is someone gets the report and they want to either challenge or correct their statement, would that be handled by a supplemental report?
A Like if they bring new facts or new evidence, that could be documented in a supplemental report. If they just don't agree with our findings, we can't -- you know, we can't change it at that point.
Q What if they dispute what they said at the scene, would that generate a supplemental report?
A Possibly that could, yeah. I mean, usually their statements are recorded on our body-worn camera

videos so, you know, it's hard for them to say they didn't say something. But that could be documented in a supplemental report.

Q Okay. And if you know, is the bodycam footage still available?

A Yes. Yes, it is.

Q And both statements were recorded on the bodycam -- body-worn cam?

A So I think it was recorded on -- I can't view other officers' body-worn camera videos. It wasn't recorded, from what I saw, on my footage but there were three other videos at least but I don't have access to it. But I'm -- I would think -- I can't assume but I would think most likely the other statements were caught on someone else's video footage.

Q And you say that that footage still exists?

A Yes.

Q And how many videos are there?

A So there's mine, my video footage, and then there's at least three more.

Q Okay. So at least a total of four?

A Yes.

Q And you did have a chance to review your bodycam video?

A Yes.

Q And as far as you indicated, there was no statements though on your bodycam, your bodycam video?
A That's correct.
Q What did you observe on your bodycam?
A When -- my body-worn camera footage starts as I'm standing outside the ambulance, and Party 1 is sitting inside the ambulance. And then I saw the scooter on the -- like near the bike lane. Yeah, that's what I saw from my footage.
Q Okay. And then Mr. Rosario was examined at the scene by ambulance personnel?
A Yes.
Q And the report indicates he refused to be transported?
A Yes.
Q I think you indicated, as far as the diagram, that you did measurements at the scene. Were those measurements documented or were they just used to establish the point of impact?
A Sorry, what do you mean documented?
Q Well, sometimes in the body of the report they'll put the measurements that were taken and the distances and the location. Was anything done like that in this investigation?
A So yeah, the measurements I just documented in

the sketch itself, on the bottom right corner.

Q Okay. So you have the reference point and then the area of impact, and then is that 4 feet east, 5 feet south of reference point?

A Yes.

MR. CHAMBERS: I don't have anything more at the moment.

Jeremy, if you have any questions, please jump in.

EXAMINATION

BY MR. JESSUP:

Q Good morning, Officer. How are you doing?

A Good, good. How are you?

Q I'm doing well. So by way of introduction, my name is Jeremy Jessup and I'm an attorney representing Mr. Rosario. And I just have a few questions and then we'll get out of here, okay?

A Okay.

Q You have the report in front of you?

A Yes.

Q Will you turn to page 6 of the report.

A Page 6, yes.

Q Okay. And this is where the statements are located?

A Yes.

Q Okay. Now, looking at line 8 where it starts with P-1, I'm assuming this is Mr. Rosario's statement, correct?

A Yes.

Q And it starts off P1 stated he was riding V1 northbound on 5th Street in the number one lane approaching Tehama Street. But then it also says he was in the bike lane against the flow of traffic. Is number one and the bike lane the same lane?

A I'm not familiar with that intersection. Sometimes they occupy the same lane but I'm not sure about this, if it's the same lane or not for this intersection.

Q Okay. In Mr. -- I'm sorry, I'm going to butcher his name, I apologize --

MR. CHAMBERS: Abdelhalim?

BY MR. JESSUP:

Q Yes, the driver of the van. According to his statement, notes that he was in the number two lane. And my understanding is lane number, we start from the center and then work our way toward the curb; is that correct?

A That's correct.

Q And so if southbound 5th Street is occupied by two lanes, then you have the bike lane, would number one lane be the one closest to the center median -- or the

center line?

A Yes, that would be.

Q And then there would be number two which would be closer to the curb, and then the bike lane.

A That's correct.

Q Okay. And is the bike lane ever numbered or is it just referred to as the bike lane?

A Usually just referred as the bike lane.

Q Okay. And is it possible that at least the statement attributed to Mr. Rosario referring to the bike lane as the number one lane, could just be a typo?

A Yeah. Now that makes sense because -- yeah, the bike lane would be adjacent to number two lane; so that seems to be a typo.

Q Because the number one lane would put him in the lane of traffic, right? And the traffic lanes?

A That's correct.

Q Okay. Now, I want to show you just, are you familiar with this intersection or has it been a while?

A It's been a while.

Q Okay. I'm going to try and share my screen and just show a video if I have that authority to share screen.

MR. CHAMBERS: You should.

(Exhibit B marked for identification)

BY MR. JESSUP:

Q Oh, I have to hit the share screen button first.

Officer, can you see the photo that's up on the screen?

A Yes.

Q And this -- just kind of a Google street, says 228 5th Street, and then you see on the ground it says Tehama Street, you see that?

A Yes.

Q So is this the intersection where this collision occurred?

A Yes.

Q Okay. And it's this alleyway that the driver of the van was -- based off of your investigation, was attempting to turn right into or westbound onto?

A That's correct.

Q Okay. Now, in the far -- you know, I guess past the intersection we see a sign. Do you see kind of where I'm circulating?

A Yes.

Q And it says "Turning vehicles yield to bicycles and pedestrians?"

A Yes.

Q And that's for right turning vehicles?

A Yes.
Q So this would apply to the driver of the van, correct?
A Yes.
Q And he's supposed to yield to all pedestrians regardless of which way they're traveling, correct?
A Yes.
Q And bicyclists, he's supposed to yield to all bicyclists, correct?
A Yes.
Q Is it regardless of which way they're traveling or is it only if they're traveling in the same direction?
A Regardless of which way they're traveling.
Q Okay. And would scooters in the bike lane, would this apply to them?
A As in the driver should yield to scooters?
Q Yes.
A Yes, he should.
Q And that's regardless of which direction?
A Yes.
Q Okay. And going to the -- let's see here. Let me stop sharing. Okay.
MR. JESSUP: I have no further questions.
MR. CHAMBERS: I have a follow up.

FURTHER EXAMINATION

BY MR. CHAMBERS:

Q I think, Officer, you testified previously that scooters are not allowed to be traveling in the bicycle lane, that they need to be in the lane of traffic?

A Yes, that's correct.

Q Okay. So a scooter traveling in the bicycle lane would not be following the Vehicle Code then correctly?

A That's correct.

MR. CHAMBERS: I have no further questions.

FURTHER EXAMINATION

BY MR. JESSUP:

Q But, Officer, a scooter traveling in the bike lane doesn't have a -- isn't fair game to be struck, right?

A That's correct.

Q Okay.

FURTHER EXAMINATION

BY MR. CHAMBERS:

Q And the scooter traveling in the traffic lane, Officer, would be expected to travel with the flow of traffic, correct?

A That's correct.

MR. CHAMBERS: Thank you, Officer.

MR. JESSUP: Thank you, Officer.

THE REPORTER: Mr. Jessup, would you like a copy?

MR. JESSUP: Yes, please.

(Deposition concluded at 11:21 a.m.)

* * *

REPORTER'S CERTIFICATION

I, Marcie Rivera, Certified Shorthand Reporter, in and for the State of California, do hereby certify:

That the foregoing witness was by me duly sworn; that the deposition was then taken before me at the time and place herein set forth; that the testimony and proceedings were reported stenographically by me and later transcribed into typewriting under my direction; that the foregoing is a true record of the testimony and proceedings taken at that time.

IN WITNESS WHEREON, I have subscribed my name this 14th day of March, 2023.

_____.
Marcie Rivera, CSR No. 11846

Reference No.: 9356209

Case: Rosario V. Abdelhalim

DECLARATION UNDER PENALTY OF PERJURY

I declare under penalty of perjury that I have read the entire transcript of my Deposition taken in the captioned matter or the same has been read to me, and the same is true and accurate, save and except for changes and/or corrections, if any, as indicated by me on the DEPOSITION ERRATA SHEET hereof, with the understanding that I offer these changes as if still under oath.

_____

Officer David Fernandez

NOTARIZATION OF CHANGES

(If Required)

Subscribed and sworn to on the _____ day of

_____, 20____ before me,

(Notary Sign)_____

(Print Name) Notary Public,

in and for the State of _____

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